

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2024CUMC031848: CITY OF THOUSAND OAKS vs GLENN R PACKARD, et al.
07/23/2026 in Department 21
Motion for Attorney Fees/Costs**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: City of Thousand Oaks’s Supplemental Motion for Attorneys’ Fees and Costs
(Opposed)

Tentative Ruling:

Plaintiff City of Thousand Oaks’ Supplemental Motion for Attorney’s Fees and Costs is GRANTED in part, as follows.

The City seeks supplemental recovery of attorney’s fees, staff costs, and litigation costs incurred after the Court’s prior fee award, principally in connection with Defendant Glenn R. Packard’s unsuccessful motion to vacate the receivership, continued monitoring of the receivership, and preparation of the present supplemental fee motion.

HSC § 17980.7(c)(11) provides that the prevailing party in an action under that section is entitled to reasonable attorney’s fees and court costs. HSC § 17980.7(d)(1) further provides that, upon the requisite findings concerning substantial endangerment to health and safety, the Court shall order the owner to pay the enforcement agency’s “reasonable and actual costs,” including inspection, investigation, enforcement, attorney’s fees or costs, and costs of prosecution.

The Court previously appointed a receiver, made the requisite statutory findings concerning the condition of the subject property, and determined that the City was entitled to recover its reasonable and actual enforcement costs. The additional work reflected in the present motion, including opposing Defendant’s motion to vacate the receivership and continued work related to the receivership, is reasonably related to the City’s enforcement of the relief obtained in this action.

Defendant does not materially challenge the reasonableness of the hourly rates, hours expended, or particular work performed. However, the Court is obligated to determine the “reasonable and actual costs”. Here, the supporting declarations attempt to explain the nature of the work and the amounts incurred. The Court notes that the requested amount of \$19,954.67 contains an apparent \$3,000 arithmetic error. Upon review of the moving papers, the opposition, the reply and attached declarations, the Court finds the following amounts reasonable and supported:

- Civica attorney fees, law clerk, and paralegal fees: \$9,492.79
- City Attorney fees: \$826.00
- City Attorney paralegal fees: \$288.00
- Litigation costs: \$0.00

These amounts total \$10,606.79

The City additionally requests \$1,770 for an estimated six hours of work associated with preparing the reply and appearing at the hearing. The Court will allow for 4 hours at \$295 per hour, for an additional \$1,180, bringing the total award to \$11,786.79.

As to the method of payment, the March 20, 2025 Receivership Order provides that the City’s reasonable and actual costs are to be reimbursed by the Receiver through the receivership mechanism and paid from the Receiver’s super-priority receivership certificate. The Court finds no sufficient basis on the present record to depart from that previously ordered procedure.

Accordingly, the City is awarded \$11,786.79 in supplemental fees and costs, to be reimbursed through the Receiver in accordance with the March 20, 2025 Receivership Order. The City’s alternative request for an order requiring Defendant to make immediate direct payment is DENIED without prejudice.

Counsel for the City to give notice.

B. Application

The City is entitled to supplemental fees and costs. HSC § 17980.7(c)(11) provides that the prevailing party in an action under the statute is entitled to reasonable attorney’s fees and court costs. HSC § 17980.7(d)(1) further requires, where the statutory endangerment finding has been made, that the owner pay the enforcement agency’s reasonable and actual enforcement costs, including attorney’s fees and costs of prosecution. The statute also expressly permits a receiver, with court approval, to secure amounts owed to the enforcement agency with a lien on the property.

These all appear satisfied here. The Court appointed the receiver, made the required findings concerning the substandard and dangerous condition of the property, and found the City to be the prevailing party. The subsequent work opposing Defendant’s unsuccessful motion to vacate the

receivership, monitoring the receivership, and pursuing supplemental cost recovery was reasonably related to enforcing and preserving the relief obtained in this action.

The requested total of \$19,954.67 contains an apparent \$3,000 arithmetic error. The amounts actually itemized are: \$9,263.00 + \$4,284.00 + \$1,021.73 + \$304.02 + \$311.92 + \$1,770.00, which equals \$16,954.67, not \$19,954.67.

Morrissey's declaration likewise identifies \$13,547 in Civica attorney/paralegal fees, \$1,325.75 in City Attorney staff costs, \$311.92 in litigation costs, and \$1,770 in anticipated reply/hearing fees, which totals \$16,954.67. The Court therefore shall not award this extra \$3,000 absent some explanation and evidentiary support for the missing \$3,000.

The requested rates (\$295 per hour for attorneys and \$180 per hour for paralegal/law-clerk work) seem reasonable for Ventura County, California, and Morrissey provides task-based descriptions of the work and states that duplicative or inefficient time was removed. The absence of detailed billing invoices does not, by itself, require denial where the declaration provides a sufficient basis for the Court to assess the work and reasonableness.

Regarding the reasonableness of Civica's requested fees and costs, the Court declines to award the \$311.92 in costs. To begin, the costs stated include \$136.22 and another \$99.06 associated with the motion to vacate, plus \$73.60 for "printing and costs" associated with the March 4, 2026 hearing. These sums total \$308.88, not the \$311.92 stated. Additionally, there is no explanation as to what these costs include. Why are there printing fees? Does this include the cost for a court call remote appearance when counsel could appear in person for no cost? Absent explanation, the Court cannot find these costs were reasonable.

Turning to the hourly attorney and paralegal fees, the Court reduces the reasonable hours from 53.1 to 37.7 hours and calculates the reasonable fees based on the information provided. The Court also allows for an additional 4 hours' time for preparing the reply and appearing at the hearing on this motion.

As to the City, the Court finds additional mathematical errors. The City claims 3.2 hours of attorney time at a cost of \$1,021.73, and another 1.8 hours of paralegal time at a cost of \$304.02. The Declaration of Assistant City Attorney Noel Doran does not provide any information as to his hourly billing rate or that of the paralegal. Assuming 3.2 hours of work at a cost of \$1,021.73, this would calculate to an hourly rate of \$319.29 per hour, which seems implausible. Based on the information in the Declaration of Mr. Doran, the Court calculates the actual attorney hours spent to total 2.8 hours and another 1.6 hours for paralegal time. The Court will accept as reasonable the same rates charged by Civica, namely \$295 per hour for attorney time and \$180 per hour for paralegal time. Using these figures, the Court finds reasonable fees for the City to total \$826.00 for attorney time and \$288.00 for paralegal time ($2.8 \times \$295 = \826 and $1.6 \times \$180 = \288).

Defendant makes a good point as to the method of payment. The March 20, 2025 Receivership Order expressly provides that the City's reasonable and actual costs "shall be reimbursed to the City by the Court Receiver" and paid from the Receiver's super-priority receivership certificate.

Although HSC § 17980.7(d)(1) ultimately places responsibility for reasonable enforcement costs on the owner, the City has not identified any reason why the Court should depart from the specific reimbursement procedure it previously ordered. The statute itself permits amounts owed to the enforcement agency to be secured through the receivership lien mechanism.

The City's alternative request for an immediate direct-payment order against Defendant is DENIED without prejudice to appropriate further relief if the receivership mechanism proves insufficient. Defendant's claimed financial inability does not defeat the City's entitlement to recover reasonable fees; it primarily bears on his argument concerning the method of payment.

The City's contention that the opposition should effectively be disregarded under California Rules of Court, rule 3.1113 is denied. Although the opposition is sparse on legal authority, its principal argument is straightforward and based on the language of the Court's own Receivership Order. The Court can readily adjudicate that issue on its merits. Nor does Defendant's asserted payment of the prior award preclude recovery of fees incurred afterward.

In sum, the City's motion for attorney fees and costs is GRANTED in PART and DENIED in PART.